

HOUSE No. 1436**The Commonwealth of Massachusetts**

PRESENTED BY:

Natalie M. Higgins and Carmine Lawrence Gentile*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to debt-free public higher education.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/15/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/15/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/21/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>1/21/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>1/28/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/28/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>1/29/2025</i>
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>1/29/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>1/30/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>1/31/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/31/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/5/2025</i>
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>2/6/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>2/6/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/8/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>2/8/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/11/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/12/2025</i>

<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/12/2025</i>
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	<i>3/5/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>3/6/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>3/10/2025</i>
<i>Ryan M. Hamilton</i>	<i>15th Essex</i>	<i>3/27/2025</i>
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>4/7/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>9/11/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>1/26/2026</i>

HOUSE No. 1436

By Representatives Higgins of Leominster and Gentile of Sudbury, a petition (accompanied by bill, House, No. 1436) of Natalie M. Higgins, Carmine Lawrence Gentile and others for legislation to establish a grant program to pay the equivalent of tuition and mandatory fees to eligible students at Massachusetts public higher education institutions. Higher Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1265 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to debt-free public higher education.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 15A of the General Laws, as appearing in the 2018
2 Official Edition, is hereby amended by inserting after the word “opportunities”, in line 14, the
3 following words:-

4 It is hereby further declared to be the policy of the commonwealth to guarantee free
5 public higher education as a right for all residents.

6 SECTION 2. Chapter 15A of the General Laws is hereby amended by inserting after
7 section 45 the following section:-

8 Section 46. (a) Definitions

9 As used in this section, the following words shall have the following meanings, unless the
10 context clearly requires otherwise:

11 “Board”, the Board of Higher Education.

12 “Eligible Student”, any person admitted to Massachusetts public college or university or
13 other public certificate, vocational, or adult education program, enrolled full-time or part-time,
14 other than a nonimmigrant alien within the meaning of paragraph 15 of subsection (a)(A)
15 through (S) of 8 U.S.C., section 1101 of the federal act, who has attended a high school in the
16 commonwealth for 3 or more years and has graduated from a high school in the commonwealth
17 or attained the equivalent thereof from an adult basic education program in the commonwealth,
18 or is currently a student in a Massachusetts public higher education institution qualifying for in-
19 state tuition under federal regulations, shall be eligible at any state institution of higher education
20 in the commonwealth. The Legislature finds that this is a state law within the meaning of 8
21 U.S.C. 1621(d).

22 (b) Notwithstanding the provisions of any general or special law to the contrary, the
23 board shall create a grant program to pay the equivalent of tuition and mandatory fees to an
24 eligible student at any Massachusetts public college or university, or certificate, vocational or
25 training program at a public institution. Students meeting the income eligibility for Federal Pell
26 Grants shall receive additional aid in grants to pay for the additional costs of attendance as
27 calculated by the academic institution of enrollment, including, but not limited to, room and
28 board, books and supplies, transportation and personal expenses.

29 (c) The grant shall supplement and shall not replace state grants, gift aid, institutional aid,
30 or federal aid through the Free Application for Federal Student Aid process. The board shall

31 promulgate regulations to ensure funds from this program do not affect eligibility for other state
32 grants, gift aid, institutional aid, or federal aid through the Free Application for Federal Student
33 Aid process.

34 (d) All public higher education and public vocational training institutions shall be
35 considered eligible institutions for this program and there shall be no restrictions on a student's
36 choice of academic programs.

37 (e) The board shall provide an annual notice of eligibility for this program to all eligible
38 students and all new graduates from a Massachusetts high school or GED program. The board
39 shall maintain a database of all students currently or potentially eligible for this program.